

M/s Reflux Extrusion v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ-C No. 6144 of 2022 · WRIT - C No. 6144 of 2022 · **Writ disposed; relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ challenging an electricity demand and recovery was disposed of without examining merits after the distribution licensee stated that an objection would be decided in a time-bound manner. The consumer was given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided within four weeks of filing after hearing, with no coercive action for eight weeks or until the objection was decided, whichever was earlier.

FACTUAL SUMMARY

The petitioners, including M/s Reflux Extrusion, challenged a demand notice dated 23 November 2021 issued by the distribution licensee for Rs. 74,24,271 on electricity connection no. 037528 (account no. 2400000570), and the recovery proceedings that followed. Counsel for the Power Distribution Corporation stated on instructions that the petitioners could object to the demand and that any such objection would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ against a demand notice and recovery was disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the designated distribution-licensee respondent within four weeks; if submitted, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against a disputed electricity demand was disposed of without merits adjudication, relegating the consumer to a clause 6.5 objection with a time-bound decision and interim protection against coercive recovery. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Para 6.5 of the Supply Code was treated as the statutory forum for objecting to the impugned demand of Rs. 74,24,271. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND DATED 23.11.2021 FOR RS. 74,24,271 AND THE RECOVERY THEREON

Court expressly declined to opine on merits; the objection is to be decided under clause 6.5. ¶ 1